

MASTER SERVICES AGREEMENT

This Master Services Agreement ('Agreement') is entered into and made effective as of **October 15, 2026** ('Effective Date'), by and between **CloudScale Technologies Inc.**, a Delaware corporation ('Provider'), and **Horizon Global Enterprises LLC**, a New York limited liability company ('Customer'). Provider and Customer may each be referred to as a 'Party' and collectively as the 'Parties'.

1. SUBSCRIPTION SERVICES & ACCESS

1.1 Provision of Services. Provider hereby grants Customer a non-exclusive, non-transferable, worldwide right to access and use the CloudScale Enterprise Platform solely for Customer's internal business operations during the Term. Customer shall not sublicense, reverse engineer, or decompile any part of the software platform.

2. TERM AND AUTOMATIC RENEWAL

2.1 Initial Term. The initial subscription term of this Agreement shall commence on the Effective Date and shall continue for a period of twelve (12) months ('Initial Term').

2.2 Automatic Renewal. This Agreement shall automatically renew for successive periods of twelve (12) months unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current term. Failure to deliver timely opt-out notice constitutes irrevocable consent to renewal at prevailing catalog rates.

MASTER SERVICES AGREEMENT (Continued)

3. FEES, INVOICING, AND PAYMENT TERMS

3.1 Subscription Fees. Customer shall pay Provider the annual subscription fees in the amount of \$120,000 USD, invoiced annually in advance. All invoices are due Net 30 days from date of receipt.

3.2 Late Penalties. Any delinquent balance past thirty (30) days shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is less. In addition, Provider reserves the right to suspend platform access if invoices remain unpaid for more than forty-five (45) days.

4. SERVICE LEVEL AGREEMENT & UPTIME

4.1 SLA Commitment. Provider shall use commercially reasonable efforts to maintain platform availability of 99.9% uptime during each calendar quarter, excluding scheduled maintenance windows announced at least 48 hours in advance.

MASTER SERVICES AGREEMENT (Continued)

5. INDEMNIFICATION

5.1 Customer Indemnity. Customer agrees to defend, indemnify, and hold harmless Provider, its affiliates, directors, officers, and employees against any and all third-party claims, liabilities, damages, losses, and reasonable attorney fees arising out of or related to Customer Data, breach of acceptable use policies, or unauthorized access using Customer credentials.

5.2 Procedure. Provider shall give Customer prompt written notice of any indemnifiable claim, and Customer shall have sole control over defense and settlement, provided that Customer shall not enter any settlement admitting liability without Provider's prior written approval.

6. CONFIDENTIALITY

6.1 Protection. Each party agrees to protect the Confidential Information of the other party using the same degree of care it uses for its own proprietary information of like nature, but no less than reasonable care.

MASTER SERVICES AGREEMENT (Continued)

7. LIMITATION OF LIABILITY

7.1 Cap on Liability. In no event shall Provider's total aggregate liability arising out of or related to this Agreement exceed the total subscription fees actually paid by Customer in the three (3) months immediately preceding the event giving rise to liability.

7.2 Waiver of Consequential Damages. In no event shall either party be liable to the other for any indirect, incidental, punitive, special, or consequential damages, including loss of profits, data loss, or business interruption, regardless of the theory of liability.

8. GOVERNING LAW AND DISPUTE RESOLUTION

8.1 Choice of Law. This Agreement shall be governed by the laws of the State of Delaware, without regard to conflict of law principles. Exclusive venue shall lie in the federal and state courts situated in New Castle County, Delaware.